

24CMCV01719 24CMCV01719

County: los-angeles

Division: Civil Law and Motion

Department: E

Hearing date: 2026-07-07

Motion: PLAINTIFF'S MOTION FOR ATTORNEY FEES, COSTS AND EXPENSES DATE: July 7, 2026 TIME: 8:30 A.M.

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Case Number: 24CMCV01719 Hearing Date: July 7, 2026 Dept: E

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES – SOUTH CENTRAL
DISTRICT

VALERIA

AVALOS AVILA, an individual

Plaintiff,

vs.

AMERICAN HONDA MOTOR COMPANY,
INC.; and DOES 1 through 50, inclusive,

Defendants.

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CASE NO: 24CMCV01719

[TENTATIVE] ORDER RE: PLAINTIFF'S MOTION
FOR ATTORNEY FEES, COSTS AND EXPENSES

DATE: July 7, 2026

TIME: 8:30 A.M.

DEPT.: E

Moving Party: Plaintiff
Valeria Avalos Avila

Responding Party: Defendant
American Honda Motor Company

Notice: Ok

Tentative Ruling: Plaintiff's
Motion for Attorneys' Fees, Costs and Expenses is GRANTED in the reduced total
amount of \$13,832.36.

I.

BACKGROUND

This

is a Song-Beverly action. Plaintiff Valeria

Avalos Avila alleges that, on or about April 16, 2023, she leased a 2023 Honda Civic (the "Subject Vehicle") manufactured and/or distributed by Defendant American Honda Motor Company, Inc. ("Honda").

Plaintiff alleges that in connection with her lease, she received an express written warranty and further alleges that the Subject Vehicle was delivered with defects which substantially impaired the use, safety and/or value of the Subject Vehicle.

Plaintiff

filed her Complaint against Honda and Does 1 through 50, inclusive, on October 31, 2024 alleging causes of action for: (1) Violation of Subdivision (d) of Civil Code Section 1793.2; (2) Violation of Subdivision (b) of Civil Code Section 1793.2; (3) Violation of Subdivision (a)(3) of Civil Code Section 1793.2; (4) Breach of Express Written Warranty Civil Code Section 1791.2 Subdivision (a); Section 1794; and (5) Breach of the Implied Warranty of Merchantability Civil Code Section 1791.1; Section 1794.

On August 19, 2025, Plaintiff filed a Notice of Settlement of Entire Case.

On September 2, 2025, Plaintiff filed a Memorandum of Costs.

On November 25, 2025, Plaintiff filed the instant Motion for Attorney Fees, Costs and Expenses.

On March 26, 2026, Honda filed its Opposition.

On April 2, 2026, Plaintiff filed her Reply.

II.

ANALYSIS

A.

Legal Standard

When litigating a Song-Beverly

Consumer Warranty Act (the “Act” or the “Song-Beverly Act”) claim, if a buyer-plaintiff prevails in their action, “the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney’s fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action.” (Civ. Code § 1794(d).)

Courts begin this inquiry “with the

‘lodestar,’ i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate.” (PLCM Group v. Drexler (2000) 22 Cal.4th 1084, 1095.) When calculating a lodestar award, the reasonable hourly rate is the prevailing rate charged by attorneys of similar skill and experience in the relevant community. (Id.)

From there, the “lodestar figure may

be adjusted [according to a multiplier enhancement] based on consideration of factors specific to the case, in order to fix the fee at the fair market value for the legal services provided.” (Ibid.) Relevant multiplier factors include “(1) the novelty and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, [and] (4) the contingent nature of the fee award.” (Ketchum v. Moses (2001) 24 Cal.4th 1122, 1132.)

B.

Discussion

Plaintiff requests attorney fees,

costs, and expenses in the total amount of \$19,319.86, consisting of \$18,557.00 in attorney fees^[1]

and \$762.86 in costs. On Reply, Plaintiff adjusts her attorney’s fees request to a total of \$15,559.50 (see Reply, p. 7:5-11), making the total fees and costs \$16,322.36.

1.

Plaintiff’s Requested Attorneys’ Fees

Plaintiff’s requested attorneys’

fees actually incurred include a total of 33 hours spent by Plaintiff's attorneys (and paralegals) litigating this case. Plaintiff's counsels' detailed billing records indicate that Plaintiff's requested fees are detailed as follows:

Timekeeper

Total

Hours Billed

Total

Amount Billed

June Kim

21.4 x

\$415/hr

\$8,881.00

Vanessa Oliva

3 x \$530/hr

\$1,590.00

Jessica Anvar

.2 x \$575/hr

\$115.00

Marissa Mittelman

1.6 x \$425/hr

\$680.00

Jessica Caro (Paralegal)

.2 x \$215/hr

\$43.00

Katherine Carreno (Paralegal)

6.6 x \$215/hr

\$1,419.00

Total:

33 hours[2]

12,728.00[3]

(Kim Decl., ¶¶ 30-38, Exh. 17.)

i.

Reasonableness of Plaintiff's Counsel's Hourly Rates

Plaintiff attests to the

reasonableness of her attorneys' hourly rates via Kim's declaration. Kim attests that the cited rates are appropriate given each attorney's relative experience and qualifications. (See Kim Decl. ¶¶ 30-38.)

In support of the contention that

each attorney's hourly rates are reasonable and commensurate to market rates for other attorneys in the community (see *Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1132), Kim cites and attaches to her declaration numerous court orders approving counsel's hourly rates for prosecution of Song-Beverly Act cases (including some orders approving rates for counsel appearing here). (See Kim Decl., ¶¶ 39-52, Exhs. 3-16.) The Court finds limited utility in Counsel's attestation as to other courts' approvals of the rates of the attorneys appearing in this matter as evidence of market rates for attorneys in the community; while another court may have determined that counsel's rates are reasonable, the proper standard is as compared to the community, meaning attorneys other than those appearing in the instant matter. While the Court finds limited utility in the fact finding of other courts as to the

reasonableness of the hourly rates of attorney appearing in this matter, the Court does find utility in the presentation of a range of fees across attorneys practicing in the same field to assist in its determination of reasonableness and limits is review of the documents provided accordingly.

Upon review of Kim's declaration as to the experience and skill of each billing attorney, the Court concludes that the contracted hourly rates sought by each attorney are reasonable based on the prevailing rates in the Greater Los Angeles area for attorneys with similar background, training, skill and experience. Honda's objection that "the plain truth is that Plaintiff's lemon law counsel charge whatever they can get away with because there is little accountability" (Opp., p. 5: 13-5) is unpersuasive. Counsel's rates are tethered to counsel's experience and qualifications and to community standards, and it is those criteria that the Court uses to conclude that counsel's rates are reasonable.

Using the same evaluation, the Court further concludes that the contracted hourly rates charged by the assigned paralegals are reasonable based on the prevailing rates in the Greater Los Angeles area for paralegals with similar background, training, skill and experience.

ii.

Reasonableness of Plaintiff's Counsel's Billed Hours

Plaintiff argues that counsel's hours spent litigating this case, and the additional anticipated hours for the Reply and hearing are reasonable.

In opposition, Honda contends Plaintiff's requested fees are excessive because Plaintiff's attorneys artificially increased their fees by engaging in unnecessary litigation, billing for unreasonable or unnecessary tasks, charging excessive amounts for boilerplate documents.

Honda argues that much of the billed time was generated solely toward recovery of attorneys' fees, and Plaintiff's attorneys billed at inflated rates.

The prevailing party has the burden of showing that the requested attorney fees were "reasonably necessary to the conduct of the litigation, and

were reasonable in amount.” (Robertson v. Fleetwood Travel Trailers of California Inc., (2006) 144 Cal.App.4th 785, 817.) The party seeking attorney fees “is not necessarily entitled to compensation for the value of attorney services according to [his] own notion or to the full extent claimed by [him].” (Levy v. Toyota Motor Sales, USA, Inc., (1992) 4 Cal.App.4th 807, 816.) Therefore, if the “time expended or the monetary charge being made for the time expended are not reasonable under all the circumstances, then the court must take this into account and award attorney fees in a lesser amount.” (Nightingale v. Hyundai Motor America, (1994) 31 Cal.App.4th 99, 104.)

A court may “reduce a fee award based on its reasonable determination that a routine, noncomplex case was overstaffed to a degree that significant inefficiencies and inflated fees resulted.” (Morris v. Hyundai Motor America, (2019) 41 Cal.App.5th 24, 39.) It is also appropriate to reduce an award based on inefficient or duplicative efforts. (Id. at p. 38.) However, the analysis must be “reasonably specific” and cannot rely on general notions of fairness. (Kerkeles v. City of San Jose, (2015) 243 Cal.App.4th 88, 102.) Moreover, in conducting the analysis, courts are not permitted to tie any reductions in the fee award to some proportion of the buyer’s damages recovery. (Warren v. Kia Motors America, Inc., (2018) 30 Cal.App.5th 24, 39 (“Warren”).)

The billing records attached to the Kim declaration “are entitled to credence in the absence of a clear indication the records are erroneous.” (Horsford v. Board of Trustees of California State University (2005) 132 Cal.App.4th 359, 396.) Accordingly, the burden shifts to Honda to present specific objections to particular time entries by providing specific evidence necessary to challenge the accuracy and reasonableness of the hours charged. (Premier Medical Management Systems, Inc. v. California Ins. Guarantee Assn. (2008) 163 Cal.App.4th 550, 563-564 (“In challenging attorney fees as excessive because too many hours of work are claimed, it is the burden of the challenging party to point to the specific items challenged, with a sufficient argument and citations to the evidence. General arguments that fees claimed are excessive, duplicative, or unrelated do not suffice”)(emphasis added).)

In its Opposition, Honda first takes issue with the amount of time expended in the attempted recovery of Plaintiff’s fees, arguing that a total of 16 hours, for a dollar amount of \$7,142.00 or approximately 46% of the fees requested, were expended in Plaintiff’s effort to

recover fees. (See Amended Chen Decl. ¶ 7 (Detailing 16 hours billed on recovery of attorney fees).)

Second, Honda next takes issue with 6.3

hours billed for “pure clerical work” billed by Plaintiff’s paralegals for tasks such as filing, serving document, calendaring, auditing the file, scheduling appearances and updating case management software information. (See id., ¶ 8.)

Third, Honda takes issue with 10

hours for what it terms “duplicate and block billing entries” for “numerous attorneys and staff billing on the same task.” (See id., ¶ 9.)

Fourth, Honda takes issue with 5.2

hours billed for what it terms generating standard discovery documents and meet and confer letters which Honda contends required minimal attorney supervision or judgment because they are “substantively identical” to documents served by Plaintiff’s counsel in other similar case. (See id., ¶¶ 10-11, Exhs. C-E.)

Finally, Honda takes issue with Plaintiff’s

counsel’s billing entries for drafting a motion to compel and reserving time for an informal discovery conference, contending that the motion was drafted despite Plaintiff’s knowledge of the Court’s preference for informal discovery conferences and the ultimately unnecessary nature of the motion to compel. (See id., ¶ 12.)

As to each of Honda’s contentions,

Plaintiff disagrees, arguing that the fees incurred were necessary and reasonable and disputing Honda’s characterizations of the fees (such as “block-billing” or “clerical tasks”).

Upon review of Honda’s detailed objections,[4]

the documents attached to Honda’s counsel’s declarations, the billing records provided by Plaintiff, and the arguments of counsel, the Court concludes that certain of Honda’s objections have merit. This is a straightforward Song-Beverly matter staffed with four attorneys and two paralegals (albeit with the majority of the work performed by one attorney). Such overstaffing leads to the entries Honda complains of wherein a paralegal confers with a handling attorney who then confers with a supervising attorney about the same issue or wherein multiple

attorneys and/or paralegals bill for performing the same task. (See, e.g., Chen Decl., ¶ 9.) Furthermore, despite Plaintiff's objections, the Court finds that certain of the work billed by Plaintiff's paralegals (including telephone calls for scheduling, calendaring, filing documents with the court, updating calendar and case management systems, and saving documents to file, among others) are not tasks which require a paralegal's hand or expertise. And the Court notes the substantial similarity between the documents attached to the Amended Chen Declaration from prior matters and the documents served in the instant matter. While there is no blame or shame in not "reinventing the wheel" (see Reply, p. 9:21-22), the objection here is that the re-use of the wheel consumed more time than was necessary or reasonable.

Having undertaken a detailed review of both Plaintiff's counsel's time records and the contested entries set forth in the Amended Chen declaration, the Court does not find the majority of the time expended to be unreasonable given the nature of the proceedings and the course of the litigation. However, the Court does find: (1) the staffing of this matter to be excessive and therefore unreasonable; and (2) the time expended for certain activities, including certain tasks which might be termed "clerical" and certain matters for which a template appears to have previously existed, to be excessive and unreasonable.

Accordingly, rather than reduce counsel's hourly rates – each of which the Court has already found to be commensurate with the individual biller's skill and experience – the Court imposes a limited reduction in the total number of hours billed, finding that the demonstrated excess in hours billed warrants a reduction. Based on the foregoing, the Court exercises its discretion to reduce Plaintiff's counsel's billed time by 6 hours at the rate of \$415/hour for a total reduction of \$2,490.00.

2.

Plaintiff's Memorandum of Costs

As noted above, on September 2, 2025 Plaintiff filed a Memorandum of Costs seeking \$762.86. Honda has not filed a motion to tax Plaintiff's costs and specifically concedes Plaintiff's claimed costs. (Amended Chen Decl., ¶ 13.) Accordingly, the Court awards Plaintiff her full requested costs in the amount of \$762.86.

III.

CONCLUSION

In all, the Court GRANTS Plaintiff's Motion for Attorney's Fees, Costs and Expenses in the total reduced amount of \$13,832.36, consisting of \$13,069.50 in attorney's fees and \$762.86 in costs.

[1] Plaintiff's Notice of Motion seeks \$18,557.00, detailing \$13,557.00 in incurred fees and \$5,000 in fees anticipated in litigating the instant motion. (See Not. of Mot., p. 2.) Elsewhere in Plaintiff's Motion, the requested amount increases to \$21,081.00 (see Mot., p. 5:10-11) for the same incurred and anticipated fees (see *id.*, fn. 4). The Court presumes the higher amount to be an error in calculation, as the correct summation of the two amounts provided is \$18,557.00.

[2] The Court's calculated total hours does not match the billing provided by Honda (33 hours per the Court's calculation versus 35.2 total hours on Exhibit 17 to Kim's declaration). The Court notes that the discrepancy may arise from the exclusion of certain billers from Kim's declaration, including Seda, Zhang, Ochoa and Chavarin.

[3] As attested by Ms. Kim, certain billers' rates have increased over the course of litigation and the requested fees include anticipated amounts to be incurred in relation to the instant motion, accounting for the difference in the calculated amount versus the amount requested. Given that the Court's calculations set forth above do not take into account the rate changes, the anticipated fees and the hours included in Plaintiff's counsel's invoices but not claimed, the Court proceeds with Plaintiff's (reduced) noticed fee request as the requested amount.

[4] The Court recognizes, as Honda points out in its Reply, that the entries in Chen's declaration may not substantively reflect Plaintiff's counsel's actual time entries. The Court has reviewed Plaintiff's billing records independently and the Court's assessments result from its own review.